

Mortgagor dying without an heir. — In the same case the questions were asked, whether in the event of a mortgagor in fee dying intestate as to real estate and leaving no heir, the mortgagee should hold the estate absolutely? and whether, if the mortgagee demanded his debt of the personal representative, he should take to himself both the land and the debt? Sir Thomas Clarke thought that the mortgagee might hold the estate absolutely; but, that if the mortgagee took his remedy against the personal representative, the Court would compel him to re-convey, not to the lord by escheat, but to the personal representative, and would consider the estate reconveyed as coming in lieu of the personalty, and as assets to answer even simple contract creditors (*c*). Lord Mansfield said, "He could not state on any ground established what would be the determination in that case" (*d*). Lord Henley observed, "The lord has his tenant and services in the mortgagee, and he has no right to anything more. Perhaps it would not be difficult to answer what would be the justice of the case, but it is not to the business in hand" (*e*). In the opinion of Sir John Romilly, M. R., the mortgagee held absolutely, subject to the payment of the mortgagor's debts out of the equity of redemption (*f*). [But since the late Act (*g*) the interest of the mortgagor will escheat to the lord.]

21. **Cestui que trust attainted for felony.** — But a failure of inheritable blood might before 4th July, * 1870, have happened (*a*), not only for want of an heir, (as in the case of an illegitimate person dying without issue), but through the corruption of blood caused by attainder, for *petit treason* or *murder*; and in the case of such attainder, the question arose whether the trustee should hold against the heir of the person attainted. Under the system of *uses* the heir could not sue his *subpœna* by reason of the corruption of blood (*b*); but trusts have since been administered on

(*c*) Id. 210.

(*d*) 1 Eden, 236.

(*e*) Id. 256; and see Viscount Downe v. Morris, 3 Hare, 394.

(*f*) Beale v. Symonds, 16 Beav.

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[(*g*) 47 & 48 Vict. c. 71, s. 4.]

(*a*) See 33 & 34 Vict. c. 23.

(*b*) Br. Feff. al. Us. 34; Cary, 14.